

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: HON. BENJAMIN T REYES II
HEARING DATE: 07/01/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULINGS
IN DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why.** Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C25-03586
CASE NAME: ED PENNING VS. FAIRWAY INDEPENDENT MORTGAGE CORPORATION
*CASE MANAGEMENT CONFERENCE
FILED BY: PENNING, ED
TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing for Line 8 (Demurrer). If the tentative ruling for Line 8 is not contested, this CMC is continued to October 30, 2026 at 8:30 in Department 16.

Law & Motion

Summary

This tentative ruling applies to **Lines 2 and 3.** Petitioner Zila Alonso Banuelos' ("Petitioner") Petitions for Approval of Compromise of Minors Kiara Miramontes (DOB 9/29/2012) and Andre Miramontes (DOB

4/27/2020) (“Minors”) Claims are **granted**, as set forth below. No appearance is required at the hearing on July 1, 2026, provided that Counsel complies with the Court’s orders.

Background

On April 1, 2026 Petitioner, who is the parent and guardian *ad litem* for both Minors filed the Petition through counsel, Law Offices of Jesse J. Chrisp, to compromise the claim that Minors had against Defendant Bertha Adin related to an accident that occurred on February 8, 2021 in Walnut Creek, CA. In that accident, Minor Andre did not sustain injuries. Minor Kiara sustained injuries resulting in abdominal pain and anxiety. Both were seen at John Muir Hospital. Kiara also had a follow-up visit with Stanford Children Health services. Petitioner represents that Minors have fully recovered and there are no permanent injuries. Defendant offered settlement as follows for each Minor:

Kiara

Andre

1. Gross Settlement: \$10,000	Gross Settlement: \$7,500
a. Medical Expenses: (\$357.02)	Medical Expenses: (\$299.48)
b. Attorney’s Fees (\$2,500)	Attorney’s Fees (\$1,875)
c. Expenses (\$1,244.71)	Expenses (\$1,210.88)
Total Expenses (a+b+c): (\$4,101.73)	Total Expenses (a+b+c): (\$3,385.36)
2. Balance: \$5,898.27	Balance: \$4,114.64

Analyses

A Petition for Minor’s Compromise is a mandatory legal procedure in California required to settle any legal claim or lawsuit belonging to a minor child. Under state law, minors lack the legal capacity to sign binding contracts or settlement releases, meaning court approval is required to finalize the settlement and secure the proceeds.

California Probate Code §§ 3500–3613 provides the primary framework for the procedure and disposition of settlement funds. Probate Code Section 3500 grants a parent or guardian the authority to compromise a minor's claim before a lawsuit is filed. Probate Code Sections 3600–3613 regulate how the court must distribute and protect the settlement proceeds. If applicable, California Code of Civil Procedure (CCP) §§ 372–376 governs minors who are already active parties in a pending civil lawsuit. CCP § 372 mandates that a minor must appear via a Guardian Ad Litem (GAL) or a guardian of the estate to execute a compromise.

Lastly, California Rules of Court (CRC), Rules 7.950–7.955: Outlines specific pleading rules, disclosure mandates, attorney fee structures, and the protocols for placing funds into blocked bank account. This Court is required to review the Petition for Approval of Compromise of Claim or Action

Ruling

1. After careful examination of the Petitions, attached documents and proposed orders, the Court finds good cause to approve both Petitions. Accordingly, the Petitions are granted. The Court will execute the Proposed Order Approving Compromise of Minors Claims and the Proposed Order to Deposit Funds into a Blocked Account lodged by Counsel on April 1, 2026.
2. The Court orders Counsel to secure the Bank's signature on Form MC-356 (Receipt and Acknowledgment of Order for the Deposit of Money into a Blocked Account). Counsel or petitioner must file this signed receipt back with the court within thirty (30) days to prove the funds were deposited in blocked accounts.
3. No appearance is required on July 1, 2026.

3. 9:00 AM CASE NUMBER: C22-01162
CASE NAME: ANTONIO SAUCEDO VS. BERTHA ADIN
***HEARING ON MINOR'S COMPROMISE AS TO ANDRE MIRAMONTES**
FILED BY: BANUELOS, ZILA ALONSO
TENTATIVE RULING:

See Line 2.

4. 9:00 AM CASE NUMBER: C23-02575
CASE NAME: MATTHEW ANDRADE VS. CHRIS PETLOCK
HEARING ON SUMMARY MOTION FILING PARTIES: DEFENDANTS PLEASANT HILL RECREATION & PARK DISTRICT AND CHRIS PETLOCK
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant Pleasant Hill Recreation & Park District and Defendant Chris Petlock's Motion for Summary Judgment or in the Alternative Summary Adjudication. The Motion relates to Plaintiff Matthew Andrade's Second Amended Complaint for (1) discrimination based on age; (2) failure to provide reasonable accommodations; (3) discrimination based on disability; (4) work environment harassment; (5) failure to prevent harassment, discrimination, and retaliation; (6) retaliation; and (7) wrongful termination. The Court previously sustained Defendants' demurrer to the wrongful termination claim without leave to amend.

For the following reasons, the Motion is **granted-in-part** and **denied-in-part**. The Motion is **granted** with respect to Plaintiff's claims for (1) age discrimination and (4) workplace harassment. The Motion is **denied** with respect to Plaintiff's claims for (2) failure to accommodate, (3) disability discrimination, (5) failure to prevent, and (6) retaliation.

Legal Standard

Code of Civil Procedure ("CCP") §§ 437c(c) provides, in relevant part:

The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.